09/01/2013
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OPR: WVOT Cybersecurity

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

Publications are available online at
https://sites.google.com/wv.gov/othub/policy-governance/ot-policies

Questions and change recommendations related to this publication shall be directed to this publication's Office of Primary Responsibility (OPR). This policy shall be reviewed annually to ensure continued alignment with current legal, operational, and strategic requirements. Revisions will be undertaken as necessary.

SUMMARY OF VERSIONS AND CHANGES

Version	Date	Revision Description
1	07/01/2015	Added Change Log History, Policy Specific Definitions, and Related Documents/Materials
2	03/01/2016	Replaced term “sexually explicit” with “sexual in nature”
3	09/01/2016	Reviewed - No Changes
4	10/20/2017	Reviewed - No Changes
5	12/31/2023	Removed Google Docs from unapproved cloud service examples in Section 1.4.2, update web address
6	03/19/2026	Reformatted and made basic administrative changes

1. PURPOSE

1.1. This policy establishes the range of acceptable and unacceptable uses of State-provided internet access and is not necessarily all-inclusive. Questions about specific internet uses which are not detailed in this policy should be directed to an agency supervisor or manager.

2. SCOPE

2.1. This policy applies to all departments (including agencies, boards, authorities, and commissions) within the Executive Branch of WV State Government, and all parties connecting to the internal executive network.

2.2. Where there are policies in place which provide less restrictions or security than this policy, those policies will be superseded by this policy. In instances where existing state and federal laws, regulations, and policies are more restrictive than this policy, more restrictive provisions prevail.

2.3. The State's users are expected to be familiar with and to comply with this policy, and are also required to use their common sense and exercise their good judgment while using Internet services.

3. POLICY

3.1. Access

3.1.1. Access to the Internet will be provided to users to support business activities and only on an as-needed basis to perform their jobs and professional roles.

3.1.2. Excessive use of the Internet by personnel that is inconsistent with business needs is considered a misuse of resources.

3.1.3. Incidental personal use is permissible so long as it:

3.1.3.1. is completed on personal time (i.e. lunch time, break)

3.1.3.2. does not consume more than trivial amount of systems resources,

3.1.3.3. does not interfere with worker productivity,

3.1.3.4. does not preempt business activity,

3.1.3.5. does not violate any State, department, or agency policy and

3.1.3.6. is not used for illegal activities.

3.1.4. Network and/or Internet access will be discontinued upon termination of employee, completion of contract, end of service of non-employee, and if a disciplinary action arising from violation of this policy is warranted.

3.2. Expectation of Privacy

3.2.1. Internet access is obtained without any expectation of privacy or confidentiality.

3.2.2. All access to and use of the Internet is monitored and may be examined by WVOT if required.

3.2.3. All users of the Internet should be aware that WVOT creates an audit log reflecting requests for service, both in-bound and out-bound addresses.

3.2.3.1. All user activity on State networks, including internet use, is subject to logging and review.

3.2.4. Users who choose to store or transmit personal information such as private keys, credit card numbers, personal emails, or make use of Internet "wallets," do so at their own risk. The State, and the WVOT are not responsible for any loss of personal information or any consequential loss of personal property.

3.3. Prohibited use of the Internet may include, but is not limited to:

3.3.1. Any conduct that would constitute or encourage a criminal offense, lead to civil liability, or otherwise violate any regulations, local, state, national or international law.

3.3.1.1. Criminal and illegal use includes, but is not limited to, unauthorized access, intentional corruption or misuse of computing resources, theft, obscenity, child pornography and racial, ethnic, religious or sexual harassment.

3.3.2. Viewing, searching, creating, accessing, posting, transmitting, storing, printing, or requesting:

3.3.2.1. Any materials that may be construed as sexual in nature;

3.3.2.2. Pictures, text messages, websites, or emails that could be considered inappropriate in a business setting; or

3.3.2.3. Any unlawful, offensive, libelous, threatening, harassing material, including, but not limited to, comments based on age, disability, marital status, race or color, national origin, religion, sex, sexual orientation or gender identity.

3.3.3. Any form of gambling.

3.3.4. All material on the Internet should be considered copyrighted material, unless specifically stated by the originating author.

3.3.4.1. Downloading software or any copyrighted material without documented permission from the copyright owner is prohibited.

3.3.4.2. The use and downloading of software and material from Internet sites that could be used for the transfer of music, software, movies and other copyrighted content is prohibited (e.g. torrent clients)

3.3.5. Unauthorized downloading of any shareware programs, peer-to-peer software, or files for use without authorization in advance from WVOT and the user's supervisor.

3.3.6. Any personal ordering (shopping) of items or services on the Internet.

3.3.7. Playing of any games

3.3.8. Streaming music or using "live" or internet radio. (See 1.6 - Bandwidth)

3.3.9. Watching movies, videos, or online clips that do not serve a business purpose. (See 1.6 - Bandwidth)

3.4. State Data and the Internet

3.4.1. Users must not post, place, or share unapproved State data on any website, mailing list, public news group, social media platform or other such Internet service.

3.4.2. State Data should only be stored on approved storage sites like Google Drive.

3.4.3. No State material, intellectual property, proprietary information, or material intended for internal distribution only, shall be placed on or made available via the Internet.

3.4.4. No Private Health Information (PHI), Personally Identifiable Information (PII), Federal Tax Information (FTI), or other sensitive material shall be placed on, or made available via, the Internet.

3.4.4.1. Any transmission of confidential data that is required for business purposes must be preapproved and encrypted during transmission.

3.4.4.2. No data will be made available via the Internet without ensuring that the material is available to only authorized individuals or groups.

3.5. Employees are prohibited from using their State email address to register at an Internet site not directly relating to business use. In addition, employees are prohibited to use said email address to register for the receipt of non-business email lists (e.g. joke of the day, horoscope of the day).

3.6. Bandwidth to the Internet is a shared, finite resource. Users must make reasonable efforts to use this resource in ways that do not negatively affect other employees.

3.7. All software used to access the Internet must be part of the State of West Virginia Office of Technology standard software or approved by the CIO. This software must incorporate all vendor-provided security patches.

3.8. All sites accessed must comply with the WVOT Acceptable Internet Usage Policy.

3.9. WVOT Internet access may not be used for personal gain or personal solicitations.

4. POLICY SPECIFIC DEFINITIONS

4.1. Access– The ability to locate, gain entry to, and use a directory, file, or device on a computer system or over a network.

4.2. Chief Information Officer (CIO) - the person designated by the governor to lead the WV Office of Technology and oversee information technology practices and initiatives for the Executive Brand of WV State government, excluding the constitutional officers.

4.3. Chief Information Security Officer (CISO) - Person designated by the CIO to oversee information security practices and initiatives for the Executive Branch of WV State government, excluding the constitutional officers.

4.4. Information Security – Those measures, procedures, and controls that provide an acceptable degree of safety for information resources, protecting them from accidental or intentional disclosure, modification, or destruction.

4.5. Information Technology (IT) – The technology involved with the transmission and storage of information, especially the development, installation, implementation, and management of computer systems and applications.

4.6. Internet - The Internet is the global system of interconnected mainframe, personal, and wireless computer networks that use the Internet protocol suite (TCP/IP) to link billions of devices worldwide.

4.7. Network- A group of associated devices that are connected by communications facilities in order to share resources. A network can involve permanent connections, such as cables, or temporary connections made through telephone, wireless, or other communications links.

4.8. Office of Primary Responsibility (OPR) - The primary section within WVOT that takes the lead on a specific policy or procedure. Usually the WVOT service provider/owner that the policy is related to or governs.

4.9. Risk – The evaluation of system assets and their vulnerabilities to threats in order to identify what safeguards are needed.

4.10. Security Contact – These individuals include the ISA or the ISL.

4.11. Threat – Includes any person, condition, or circumstance that endangers the security of information or information systems in the context of information security.

4.12. West Virginia Office of Technology (WVOT) - The division of the Department of Administration established by WV Code § 5A-6-4a, et. seq., which is led by the State's CIO and designated to acquire, operate, and maintain the State's technology infrastructure. The WVOT is responsible for evaluating equipment and services, and reviewing information technology contracts.

5. RELEVANT MATERIALS AND DOCUMENTS

5.1. 45 Code of Federal Regulations (CFR) §§ 164.308-316

5.2. Freedom of Information Act

5.3. Gramm-Leach Bliley Act (GLBA)

5.4. Health Insurance Portability and Accountability Privacy Rule

5.5. NIST SP 800-14 and NIST SP 800-53

5.6. State Health Privacy Laws

5.7. WV Code § 5A-6-4a

5.8. WV Executive Order No. 7-03

5.9. WVOT Policies Issued by the Chief Information Officer (CIO), https://sites.google.com/wv.gov/othub/policy-governance/ot-policies